

25STCV01545 25STCV01545

County: los-angeles
Division: Civil Law and Motion
Department: 506
Hearing date: 2026-09-10
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Case Number: 25STCV01545 Hearing Date: September 10, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

AMHARA ASSOCIATION
OF LOS ANGELES,

Plaintiff,

vs.

WONFEL AID INC., et al.,

Defendants.

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CASE NO.: 25STCV01545

[TENTATIVE] ORDER DENYING MOTION FOR SANCTIONS

Dept. 506

8:30 a.m.

September 10, 2026

On

August 12, 2026, Cross-Defendant Anegu Ademe filed a motion for sanctions under Code of Civil Procedure section 128.7.

By

presenting a motion to the Court, an attorney is certifying that to the best of the person's knowledge, information, and belief that the motion is not being presented primarily for an improper purpose and that the legal contentions are warranted by existing law or by a nonfrivolous argument for the extension, modification, or reversal of existing law. (Code Civ. Proc., § 128.7, subd. (b).)

If, after notice and a reasonable opportunity to respond, the Court determines that subdivision (b) has been violated, the court may impose an appropriate sanction upon the attorneys, law firms, or parties that have violated subdivision (b) or are responsible for the violation. (Code Civ. Proc., § 128.7, subd. (c).) "A motion for sanctions brought by a party or a party's attorney primarily for an improper purpose, such as to harass or to cause unnecessary delay or needless increase in the cost of litigation, shall itself be

subject to a motion for sanctions.” (Code Civ. Proc., § 128.7, subd. (h).)

Cross-Defendant

contends that the First Amended Cross-Complaint (“FACC”)’s sole cause of action for declaratory relief “(1) lacks evidentiary support and is contradicted by Cross Complainants’ own exhibits (Code Civ. Proc., § 128.7, subd. (b)(3)); (2) is not warranted by existing law or any nonfrivolous argument for the extension of existing law (id., subd. (b)(2)); and (3) was presented and is being maintained for an improper purpose, including to harass Ms. Ademe and needlessly increase the cost of litigation.” (Motion at p. 2.)

On

April 10, 2026—long before Cross-Defendant served this motion on July 17, 2026—Cross-Complainants filed a motion for leave to amend the FACC.

Those amendments included adding a second cause of action for conversion and additional factual allegations about Cross-Defendant. That motion was scheduled for a hearing the day after Cross-Defendant filed this motion for sanctions. Instead of waiting for the Court’s final ruling on the motion to amend, Cross-Defendant filed this motion for sanctions at 9:59 p.m. the night before.

The

Court does not make any finding on whether Cross-Complainants indeed violated Code of Civil Procedure section 128.7, subdivision (b). The Court finds only that even if certain parts of the FACC constituted a violation, Cross-Complainants “appropriately corrected” the issues by seeking leave to amend on April 10, 2026. (See Code Civ. Proc., § 128.7, subd. (c)(1).) Accordingly, this motion should not have been filed.

The

motion for sanctions is DENIED.

Moving

party to give notice.

Parties

who intend to submit on this tentative must send an email to the Court at SMCDEPT506@lacourt.ca.gov indicating intention to submit. If all parties in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference) is also on calendar.

Dated this 10th day of September 2026

Hon. Thomas D. Long

Judge of the Superior
Court